

		counsel within 30 days of the notice of ruling. (See Code Civ. Proc., §§ 2030.290(c), 2031.310(h), and 2023.010.) Defendant shall give notice of the ruling Case Management Conference Order to Show Cause re: Dismissal for Failure to Serve
4	Cortazo vs. Volkswagen Group of America, Inc. 2024-01435460	Motion to Compel Further Responses to Form Interrogatories Motion to Compel Further Responses to Special Interrogatories Motion to Compel Production Motion to Compel Response to Requests for Admissions Plaintiffs Emily Cortazo and Teresa Cortazo Romano’s motion to compel defendant Volkswagen Group of America, Inc. to provide further responses to form interrogatories, set one, is substantively moot. Plaintiffs’ motion to compel Defendant to provide further responses to special interrogatories, set one, is substantively moot except as to no. 30. The motion is granted as to no. 30. Plaintiffs’ motion to compel Defendant to provide further responses to requests for production, set one (“RFPs”), is substantively moot except as to no. 34. The motion is granted as to no. 34. Plaintiffs’ motion to compel Defendant to provide further responses to requests for admission, set one (“RFAs”), is substantively moot. Plaintiff is awarded total sanctions of \$937.77 against Defendant. Defendant Volkswagen Group of America, Inc. is to pay this amount to Plaintiff’s counsel, Knight Law Group LLP, no later than August 17, 2026. Motion to Compel Further Responses to Interrogatories A party may move to compel further responses to interrogatories on the grounds that the answer is evasive or incomplete. Code Civ. Proc. § 2030.300(a)(1). The motion must be brought within 45 days of the day responses were served (with 5 extra days if the responses are served by mail). Code Civ. Proc. §§ 2030.300(c), 2016.050, 1013. If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer the interrogatories. <i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal. 4th 245, 255.

Prior to filing such a motion, the moving party must meet and confer with the responding party in a reasonable and good faith attempt to informally resolve each issue that would be presented by the motion. Code Civ. Proc. § 2030.300(b); § 2016.040.

Because Defendant served supplemental responses, the court might find that the motion is moot, denying the motion on that basis and leaving Plaintiff to meet and confer further on the supplemental responses and bring a new motion. But the court can also proceed if that is feasible.

In *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*(2007) 148 Cal.App.4th 390, the court ruled that service of untimely discovery responses did not divest the trial court of jurisdiction to hear the motion to compel responses. *Id.* at 396. The court noted that it remains within the trial court’s discretion whether to proceed with the motion when a response is served after the motion to compel has been filed. *Id.* 405-07.

Form Interrogatories

Plaintiff moved to compel a further response to form interrogatory no. 15.1. Defendant has served a supplemental response to that interrogatory and Plaintiff has not contended that the supplemental response is insufficient. Accordingly, the motion substantively moot.

Special Interrogatories

Plaintiff moved to compel further responses to special interrogatory nos. 30, 42, and 43. Defendant served supplemental responses to nos. 42 and 43. Plaintiff has not contended that these supplemental responses are insufficient. Accordingly, the motion is moot as to these special interrogatories.

Defendant did not, however, serve a supplemental response to special interrogatory no. 30, so it remains in issue.

SPECIAL INTERROGATORY NO. 30: Did the person(s) that evaluated the repurchase request for the SUBJECT VEHICLE have access to the warranty repair rates for the components that were the subject of warranty claims in the SUBJECT VEHICLE?

RESPONSE TO SPECIAL INTERROGATORY NO. 30: VWGoA objects to this interrogatory on grounds that it is overbroad, vague, ambiguous, vague as to time, not reasonably calculated to lead to the discovery of

admissible evidence, and impermissibly compound or conjunctive in violation of Code of Civil Procedure section 2030.060(f).

Defendant has not justified these objections, which on their face are not merited. Rather, Defendant asks the court to limit discovery. [See Defendant's Separate Statement (ROA #142(at 4-5.) For such relief, Defendant needed to bring a motion for protective order.

Defendant argues that Plaintiffs did not meet and confer sufficiently and in good faith. The court disagrees.

The motion to compel further response as to special interrogatory no. 30 is granted.

Motion to Compel Further Responses to RFPs

Where there has been a response to RFPs that the propounding party finds inadequate, then the Code provides for a motion and order compelling production upon a showing of good cause, prior meeting and conferring, and the filing of a separate statement. Code Civ. Proc. § 2031.310(b)(1) and (2); CRC 3.1345; Cal. Prac. Guide, Civil Procedure before Trial §8:1494.1.

In order to meet the burden of showing good cause, the moving party must show: (1) relevance to the subject matter and (2) specific facts justifying discovery. Weil & Brown, Cal. Civ. Proc. Before Trial, 8:1495.6 (The Rutter Group 2011). Declarations are generally used to show good cause, and they must contain specific facts and not mere conclusions. *Id.* at 8:1495.7. If the moving party demonstrates good cause, then the opposing party must justify any objections. *Kirkland v Superior Court* (2002) 95 Cal. App. 4th 92, 98.

Plaintiff moved to compel further responses to RFP nos. 18, 33, 34, 45, and 46. Defendant served supplemental responses to nos. 18, 33, , 45 and 46. Plaintiff has not contended that these responses are insufficient. Accordingly, the motion is moot as to these RFPs.

Defendant did not, however, serve a supplemental response to RFP no. 34, so it remains in issue.

REQUEST FOR PRODUCTION NO. 34:

All Recalls that have been issued for the same year, make, and model as the SUBJECT VEHICLE.

RESPONSE TO REQUEST FOR PRODUCTION NO. 34:

VWGoA objects on grounds that Plaintiffs have not designated the items being sought for production by specifically describing each individual item or by reasonably particularizing each category of item (CCP § 2031.030 (c)(1)). VWGoA also objects to this request on grounds that it is overbroad and thus not reasonably calculated to lead to the discovery of admissible evidence as stated. VWGoA further objects on grounds that it is invasive of the trade secret privilege and seeks confidential and proprietary business information, disclosure of which could damage VWGoA's competitive position in the marketplace. Subject to and without waiving the foregoing objections, VWGoA will produce herewith any recalls pertaining to any warranty repairs performed on the subject vehicle during Plaintiffs' ownership thereof. See Exhibit G.

Plaintiffs address good cause in their separate statement. [*See* Plaintiff's Separate Statement (ROA # 83) at 2, 7, 8; Thomas Decl. (ROA #87).]

Again, Defendant objects that Plaintiffs did not meet and confer sufficiently. Defendant does not attempt to justify its objections or its response.

The motion to compel further response a to RFP no. 34 is granted.

Motion to Compel Further Responses to RFAs

After receiving responses to requests for admission that a party finds evasive or incomplete a party may move for further responses. Code Civ. Proc. §2033.290(a). The motion must be accompanied by a declaration showing a good faith attempt to meet and confer and a separate statement. Code Civ. Proc. §2033.290(b).

Plaintiff moved to compel further response to RFA nos. 13 and 14. Defendant served supplemental responses to both of these RFAs. Plaintiff has not contended these supplemental responses are insufficient.

Accordingly, the motion substantively moot.

Plaintiff to give notice.

5	Holland vs. South Orange County Community College District 2022-01265727	Motion re: Excluding Evidence The motion by Defendant South Orange County Community College District (“Defendant”) for an order excluding any evidence pertaining to Dr. Mark Ritchie pursuant to CCP section 2023.030, subdivision (b) and (c) is DENIED. Pursuant to Code of Civil Procedure section 2023.030, the court may issue terminating, evidentiary, issue, and/or monetary sanctions against a party engaging in conduct that is a misuse of the discovery process. Misuse of the discovery process includes: failing to respond or to submit to an authorized method of discovery; making, without substantial justification, an unmeritorious objection to discovery; and making an evasive response to discovery. (Code Civ. Proc. § 2023.010, subd. (d), (e), and (f).) Defendant has not shown Plaintiff Joy M. Holland engaged in conduct that constitutes a misuse of the discovery process. To the extent Defendant was unable to take Dr. Mark Ritchie’s deposition, Defendant withdrew Defendant’s motion to compel Dr. Ritchie’s deposition the morning of the hearing on the motion, after viewing the Court’s tentative ruling to deny the motion. (Notice of Withdrawal, ROA No. 248.) Contrary to Defendant’s contention, Defendant sought an order compelling Dr. Ritchie to comply with the deposition subpoena and was not simply an order compelling records as Defendant now contends in Defendant’s reply. (Motion to Compel, ROA No. 188; Reply, ROA No. 400, 5:23-25 and 5:28-6:1.) In addition, Dr. Ritchie’s most recent communications do not show a refusal to appear for a deposition. (Walsh Decl., ¶¶ 9 and 13, Exhibits 7 and 10.) Rather, Dr. Ritchie sets forth the limits of the testimony absent patient authorization or court order. (<i>Id.</i>) Although Plaintiff refused to sign the provided authorization, Defendant also did not show the overly broad scope of the authorization was warranted. (<i>Id.</i>, ¶¶ 10-11, Exhibit 8.) Accordingly, the motion is denied. Plaintiff shall give notice.
6	Mall vs. City of Santa Ana 2024-01372814	Motion for Judgment on the Pleadings The motion for judgment on the pleadings by Defendant City of Santa Ana (“Defendant”) as to the first cause of action for wrongful constructive termination in violation of public policy alleged in the Complaint filed by Plaintiff Keith Mall (“Plaintiff”) is GRANTED.